

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Emily Devaney	Team: Bias Squad #01	CCRB Case #: 202203671	☒ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 05/30/2022 2:15 PM, Thursday, 04/13/2023 10:20 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/30/2023	Precinct: 52		
Date/Time CV Reported Mon, 05/30/2022 5:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/07/2022 4:34 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Joesne Araujopassos	19456	969488	052 PCT
2. PO Joshua Negron	01445	970734	052 PCT
3. PO Yordani Capellan	04335	960321	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Hans Arias	00503	960173	052 PCT
2. SGT Ronald Cobilich	01845	951624	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Joesne Araujopassos	Discourtesy: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos spoke discourteously to § 87(2)(b)	A . Within NYPD Guidelines
B . PO Joesne Araujopassos	Abuse: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos threatened § 87(2)(b) with the use of force.	B . Substantiated
C . PO Joesne Araujopassos	Discourtesy: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos spoke discourteously to § 87(2)(b)	C . Substantiated
D . PO Joesne Araujopassos	Abuse: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos threatened § 87(2)(b) with the use of force.	D . Substantiated
E . PO Joesne Araujopassos	Force: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos used physical force against § 87(2)(b)	E . Unfounded
F . PO Joesne Araujopassos	Force: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos used physical force against § 87(2)(b)	F . Substantiated

Officer(s)	Allegation	Investigator Recommendation
G . PO Joshua Negron	Force: Police Officer Joshua Negron used physical force against § 87(2)(b)	G . Within NYPD Guidelines
H . PO Yordani Capellan	Force: Police Officer Yordani Capellan used physical force against § 87(2)(b)	H . Within NYPD Guidelines
I . PO Joesne Araujopassos	Discourtesy: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos spoke discourteously to § 87(2)(b)	I . Substantiated
J . PO Joesne Araujopassos	Force: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos used physical force against § 87(2)(b)	J . Substantiated
§ 87(2)(g), § 87(4-b)		
L . PO Joesne Araujopassos	Untruthful Stmt.: On April 13, 2023, at 100 Church Street, 10th Fl. in Manhattan, Police Officer Joesne Araujopassos provided a false official statement to the CCRB.	L . Substantiated

Case Summary

On May 30, 2022, Sergeant Ronald Cobilich of the 52nd Precinct filed this complaint with IAB on behalf of § 87(2)(b). IAB forwarded the complaint to the CCRB, where it was received on June 7, 2022.

On May 30, 2022, at 2:15 p.m., Police Officers Joesne Araujopassos, Joshua Negron, and Yordani Capellan from the 52nd Precinct responded to a 911 call for an assault in progress involving § 87(2)(b) and his wife, § 87(2)(b) near the intersection of § 87(2)(b) in the Bronx. § 87(2)(b) entered his car in attempt to flee. PO Araujopassos told § 87(2)(b) to “get the fuck out” of the car (**Allegation A: Discourtesy, Within NYPD Guidelines**). PO Araujopassos told § 87(2)(b) “I’ll fuck you up,” (**Allegations B-C: Abuse of Authority, Discourtesy, Substantiated**). PO Araujopassos told the other officers to tase § 87(2)(b) (**Allegation D: Abuse of Authority, Substantiated**). PO Araujopassos allegedly punched § 87(2)(b) (**Allegation E: Force, Unfounded**). § 87(2)(b) exited the car briefly then attempted to reenter. PO Araujopassos grabbed his leg and bent it over the door (**Allegation F: Force, Substantiated**). PO Negron and PO Capellan pulled § 87(2)(b) out of the car (**Allegations G-H: Force, Within NYPD Guidelines**). The officers handcuffed § 87(2)(b). PO Araujopassos told § 87(2)(b) to “shut the fuck up,” (**Allegation I: Discourtesy, Substantiated**). § 87(2)(b) spit at PO Araujopassos, and PO Araujopassos punched § 87(2)(b) in the face (**Allegation J: Force, Substantiated**). § 87(2)(b) was arrested for assault.

§ 87(2)(g), § 87(4-b)

The investigation found that PO Araujopassos provided a false official statement to the CCRB on April 13, 2023 (**Allegation L: Untruthful Statement, Substantiated**).

The investigation obtained 14 body-worn camera (BWC) videos from the NYPD Legal Bureau (**Board Review 01**). The relevant BWC files are noted in the applicable sections below.

The investigation obtained a partially redacted case file from Patrol Borough Bronx Investigations Unit (PBBX-IU) who also investigated this case (**Board Review 02**). PBBX-IU substantiated one allegation of physical force and one allegation of “use of a prohibited act” against PO Araujopassos. PO Negron was the only other subject officer listed in the case, and no allegations against him were substantiated.

Findings and Recommendations

Allegation (A) Discourtesy: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos spoke discourteously to § 87(2)(b)

Allegation (B) Abuse of Authority: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos threatened § 87(2)(b) with the use of force.

Allegation (C) Discourtesy: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos spoke discourteously to § 87(2)(b)

Allegation (D) Abuse of Authority: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos threatened § 87(2)(b) with the use of force.

It is undisputed that § 87(2)(b) called 911 and reported that § 87(2)(b) had struck her. PO Araujopassos, PO Negron, and additional officers responded to the scene.

§ 87(2)(b) a 43-year old who described himself as being 5’10” in height and weighing 240 pounds, testified that he was in his car when PO Araujopassos and PO Negron approached him and asked about § 87(2)(b) allegations (**Board Review 03**). § 87(2)(b) told the officers he wanted to leave. PO Araujopassos entered the passenger seat of the car and said, “Get out of the car or else I’ll fuck you up. I’ll fucking kill you.” § 87(2)(b) cursed back at PO Araujopassos saying, “You ain’t gonna do shit,”

and reiterated that he was going to leave. PO Araujopassos punched § 87(2)(b) in his right arm more than 20 times (see analysis of **Allegation E** below). PO Araujopassos' knee hit the gear stick and shifted the car into neutral. § 87(2)(b) stepped on the brake pedal. He struggled to get the car in park because PO Araujopassos was punching him. Additional officers pulled § 87(2)(b) from the other side of the car. He told them, "I'm trying to put the car in park," which he was eventually able to do.

The body-worn camera (BWC) video from PO Araujopassos showed that § 87(2)(b) got into his vehicle after the officers approached him, as shown at the 6:10 minute-mark of the player's timestamp (**Board Review 04**). PO Araujopassos followed § 87(2)(b) and sat in the front passenger seat. PO Araujopassos told § 87(2)(b) not to leave multiple times. PO Araujopassos grabbed the keys from the ignition and engaged the emergency brake. At 7:05, PO Negron said from outside the driver's door, "Put the car in park." At 7:14, PO Araujopassos said, "Get the fuck out of the car right now. I'm going to fuck you up. Get the fuck out of the car." PO Araujopassos repeated, "Get the fuck out of the car," multiple times. § 87(2)(b) told PO Araujopassos, "Get off me." § 87(2)(b) put the car in park at 7:20. § 87(2)(b) told PO Araujopassos, whose hand was still on the car keys in the ignition, "Turn off the key. Turn it off right." At 7:38, PO Araujopassos said, seemingly to PO Negron or other officers, "Tase him. Tase him." No one used a Taser against § 87(2)(b). At 8:00, § 87(2)(b) told the officers he would get out of the car, and he did. At no point did PO Araujopassos punch § 87(2)(b).

PO Araujopassos noted that he had had no prior interaction with § 87(2)(b) (**Board Review 05**). He testified that he entered § 87(2)(b) car to prevent him from fleeing. Since PO Araujopassos approached him as the suspect of the assault § 87(2)(b) had alleged, § 87(2)(b) was not free to leave the scene. PO Araujopassos did not enter the car for any other reason. PO Araujopassos used profanity as an emphasis for § 87(2)(b) to comply with his instruction to get out of the car. PO Araujopassos explained that "I'm going to fuck you up" meant that he would use physical force against § 87(2)(b) if he did not comply. PO Araujopassos intended this to be a warning in hopes of de-escalating the situation. PO Araujopassos feared for his life, in the event § 87(2)(b) drove the car forward and crashed, or if he reached for a weapon. PO Araujopassos clarified that he had no reason to believe § 87(2)(b) had a weapon. PO Araujopassos also based his fear on the experience of an unidentified police officer in the Bronx who had shot an individual inside a car after the situation escalated. PO Araujopassos stated that he said, "Tase him," for the same reasons: to gain compliance and prevent the situation from escalating. PO Araujopassos knew from his training that it was appropriate to use a Taser against an individual who was actively resisting. § 87(2)(b) was actively resisting by attempting to flee and failing to comply with orders to stop.

PO Araujopassos reported on his interview pedigree sheet that he was 34 years-old, 6'4" in height, and weighed 210 pounds (**Board Review 07**).

PO Negron testified to the CCRB that he had no recollection that PO Araujopassos told him or other officers to use a Taser against § 87(2)(b) (**Board Review 06**). PO Negron was equipped with a Taser at the time, but he did not use it.

According to NYPD Patrol Guide Procedure 200-02, officers should treat every citizen with compassion, courtesy, professionalism, and respect (**Board Review 08**).

Profane remarks made during stressful situations or while an officer is trying to get a chaotic situation under control are not misconduct, per DAO-DCT case #2017-170058 (**Board Review 09**). The judge in this case specified that a "chaotic situation" must be circumscribed to prevent the misuse of this exception. In examining the case, the judge weighed whether the interaction under examination was "so chaotic that the [officer's] duty of courteous and professional behavior should be overridden by the immediate need to maintain order."

Police officers are permitted to use a reasonable amount of force necessary to gain compliance, control, or custody of an uncooperative subject, according to NYPD Patrol Guide Procedure 221-02 (Board Review 10). First, however, officers are to use de-escalation techniques when appropriate and consistent with personal safety. The Patrol Guide defines “de-escalation” as actions taken to stabilize a situation and reduce the immediacy of the threat. The goal of de-escalation is to gain voluntary compliance of the subject to reduce or eliminate the necessity to use force. A subject is considered “actively resisting” when they use physically evasive movements to defeat an officer’s attempt at control. Such movements include bracing, tensing, pushing, or verbally signaling an intention to avoid custody. “Active aggression” is defined as a threat or overt act of an assault, through physical or verbal means, coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury is imminent.

NYPD Patrol Guide Procedure 221-08 states that tasers, or Conducted Electrical Weapon (CEW), are only to be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or others (**Board Review 11**). Officers are prohibited from using a CEW on a person who is passively resisting or offering no active physical resistance. Some factors to consider when assessing if a use of force, such as the use of a Taser, is reasonable include but are not limited to the following:

- a. The nature and severity of crime/circumstances,
- b. Actions taken by subject,
- c. Duration of action,
- d. Immediacy of perceived threat or harm to subject, members of the service, and/or bystanders,
- e. Whether the subject is actively resisting custody,
- f. Whether the subject is attempting to evade by flight,
- g. Number of subjects in comparison to number of MOS,
- h. Size, age, and condition of subject in comparison to MOS,
- i. Subject’s violent history, if known,
- j. Presence of hostile crowd of agitators, and/or
- k. Subject apparently under influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegations B-C** be closed as **Substantiated**.

The BWC footage depicts PO Araujopassos threatening § 87(2)(b) with the use of force by telling other officers to use a Taser against him. § 87(2)(g)

§ 87(2)(b) had actively resisted officers' attempts to arrest him by attempting to flee in his vehicle and initially ignoring officers' commands to cease. § 87(2)(b) resistance lasted for approximately 80 seconds until he put the car in park. Because PO Araujopassos had the car keys in his grasp, § 87(2)(b) would have had to overcome PO Araujopassos to move the car, and the BWC does not depict that § 87(2)(b) made any attempt to do so. § 87(2)(g)

§ 87(2)(b) The total number of officers present was larger than the number of subjects in that in addition to PO Araujopassos, there were two officers outside the driver's side while § 87(2)(b) was the only subject. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) It is recommended that **Allegation D** be closed as **Substantiated**.

Allegation (E) Force: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos used physical force against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) the video evidence above clearly showed that PO Araujopassos did not punch § 87(2)(b) on the arm § 87(2)(g) Therefore, it is recommended that **Allegation E** be closed as **Unfounded**.

Allegation (F) Force: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos used physical force against § 87(2)(b)

Allegation (G) Force: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joshua Negron used physical force against § 87(2)(b)

Allegation (H) Force: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Yordani Capellan used physical force against § 87(2)(b)

§ 87(2)(b) testified that PO Araujopassos and PO Negron pulled him out of the car “vertically” such that his feet were off the ground (**Board Review 03**). He did not allege any injuries from this. § 87(2)(b) stated that he exited the vehicle one time, when officers pulled him out. This is inconsistent with the body-worn camera videos.

PO Negron’s BWC video showed that after § 87(2)(b) exited the vehicle, he told officers, “I’m going to fucking get dressed ‘cause y’all taking me to jail,” and turned to face the car, as shown at the 8:48 minute-mark of the player’s timestamp (**Board Review 12**). § 87(2)(b) bent forward and put his head and shoulders into the car through the driver’s door. At 08:49, PO Araujopassos moved forward from the outside of the driver’s door which pushed the door into § 87(2)(b) back. § 87(2)(b) continued forward putting his torso into the car. It is unclear if the contact with the door was the cause, or partial cause, of § 87(2)(b) continuing into the car. PO Araujopassos, PO Negron, and PO Capellan took hold of § 87(2)(b). PO Negron put his right arm through the rear window reaching toward § 87(2)(b). PO Araujopassos grabbed § 87(2)(b) left leg, and PO Capellan grabbed his right. At 8:58, PO Araujopassos held § 87(2)(b) leg over the top of the driver’s door. At 9:01, § 87(2)(b) knee was seen folded over the door. PO Araujopassos held § 87(2)(b) ankle.

PO Capellan’s BWC video showed § 87(2)(b) had his left knee on the driver’s seat and his right foot on the ground at 6:06 (**Board Review 13**). PO Araujopassos initially grabbed § 87(2)(b) left upper arm, then his waistband, then his leg. PO Capellan took hold of § 87(2)(b) right leg at 6:08. At 6:11, PO Araujopassos lifted § 87(2)(b) left leg into the air and over the car door. He bent his waist and knees into a squatting position as he bent § 87(2)(b) leg down over the door, at 6:13. At 6:21, PO Capellan released § 87(2)(b) right leg, and PO Negron pulled § 87(2)(b) from the car with his arms around § 87(2)(b) torso. PO Araujopassos still held onto § 87(2)(b) left leg at that point. It is unclear whether PO Araujopassos put pressure on § 87(2)(b) leg at that point.

PO Araujopassos’ BWC video did not show this portion of the incident as the camera fell to the ground as § 87(2)(b) leaned into the car (**Board Review 04**).

In their testimony to the CCRB, both PO Araujopassos (**Board Review 05**) and PO Negron (**Board Review 06**) explained that § 87(2)(b) was under arrest at this point and that they were concerned when he reached back into the car. PO Araujopassos and PO Negron stated that they saw § 87(2)(b) reach toward a bag in the backseat. Neither knew what was inside the bag.

PO Araujopassos noted specifically that there could have been a weapon in the car. PO Araujopassos’ belief was based on the experiences of other police officers, not any factors related to this incident. PO Araujopassos initially stated that § 87(2)(b) “dove” into the car through the driver’s window such that his legs were in the air. PO Araujopassos grabbed § 87(2)(b) legs and attempted to pull him out of the vehicle, alongside PO Negron and PO Capellan. After watching PO Negron’s BWC video, however, PO Araujopassos recalled that § 87(2)(b) did not go through the window. PO Araujopassos stated that he did not bend § 87(2)(b) leg over the door or put pressure on it. Rather, he held § 87(2)(b) leg in place to keep him from going further into the car. He added that if he had put pressure on § 87(2)(b) leg, he could have broken it.

A request for TRI reports regarding this incident yielded negative results (**Board Review 14**).

The case file from Patrol Borough Bronx Investigations Unit (PBBX-IU) noted that there was a TRI prepared (**Board Review 02**). TRI § 87(2)(b) was requested from the NYPD Legal Bureau and will be added to the case file upon receipt. Page 8 of the PBBX-IU case noted that PO Araujopassos regained control of § 87(2)(b) “through minimal force” prior to placing him in handcuffs. The PBBX-IU investigation also noted that PO Negron’s use of “grappling and wrestling” in order to place § 87(2)(b) under arrest was within NYPD guidelines. PO Capellan was not listed as a subject.

As noted above, police officers are permitted to use a reasonable amount of force necessary to gain compliance, control, or custody of an uncooperative subject, according to NYPD Patrol Guide Procedure 221-02 (Board Review 10). Officers are advised to devise a plan with members present in order to minimize the possibility of injuries to the subject, officers, or bystanders, if appropriate and consistent with officer safety. Officers should apply no more than the reasonable force necessary to gain control, taking into account the subject’s actions, immediacy of the perceived threat or harm, number of subjects in comparison to the number of officers, and if the subject is actively resisting custody, among other factors.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as **Substantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegations G-H** be closed as **Within NYPD Guidelines**.

Allegation (I) Discourtesy: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos spoke discourteously to § 87(2)(b)

Allegation (J) Force: On May 30, 2022, at § 87(2)(b) in the Bronx, Police Officer Joesne Araujopassos used physical force against § 87(2)(b)

§ 87(2)(b) testified that after officers handcuffed him, PO Araujopassos said, “How do you like that?” (**Board Review 03**). § 87(2)(b) replied, “How do you like this?” and spit at PO Araujopassos. He did not know if any of his saliva made contact with PO Araujopassos. PO Araujopassos punched § 87(2)(b).

§ 87(2)(b) on the left side of his jaw with his right hand. § 87(2)(b) said, “Is that the best you can do?” or something similar. The other officers brought § 87(2)(b) away from PO Araujopassos and into a police car. § 87(2)(b) sustained a contusion on his jaw and inhibited his ability to chew. As a result of this incident, § 87(2)(b) preexisting shoulder injury was exacerbated, and he had pain in his back and knees. § 87(2)(b) was unable attribute these injuries to specific actions of the officers. § 87(2)(b) was treated at § 87(2)(b) Hospital in the Bronx. He did not provide photos or medical documents of his injuries. He did not complete HIPAA forms when asked to do so.

§ 87(2)(b) account is somewhat consistent with the body-worn camera (BWC) videos. PO Negron’s BWC video showed this interaction beginning at the 11:35 minute-mark of the player’s timestamp (**Board Review 11**). § 87(2)(b) was talking to someone out of frame, likely § 87(2)(b) or other officers. At 11:40, PO Araujopassos told him, “Shut the fuck up, man.” § 87(2)(b) replied, “Why do you keep talking to me like that?” PO Araujopassos repeated, “Shut the fuck up.” At 11:44, § 87(2)(b) spit at PO Araujopassos in a manner that sprayed from his mouth. It is unknown if his saliva made contact with PO Araujopassos. § 87(2)(b) turned his shoulders to the right, away from PO Araujopassos. At 11:45, PO Araujopassos struck § 87(2)(b) in the face with his left fist. § 87(2)(b) steps backwards, and PO Negron puts his arm across his chest. § 87(2)(b) spits toward PO Araujopassos again. This time, however, it does not appear that any saliva leaves his mouth.

This is captured from another angle on the BWC video of a witness officer, Police Officer Hans Arias from the 52nd Precinct (**Board Review 15**). At 8:45, § 87(2)(b) spit at PO Araujopassos. At 11:47, PO Araujopassos curled his left hand into a fist and swung it at § 87(2)(b) face.

PO Araujopassos testified that he told § 87(2)(b) to stop talking because he was interfering with § 87(2)(b) speaking with other officers (**Board Review 05**). PO Araujopassos did not believe it was necessary to use profanity in this instance, but he attributed the use of profanity to his “adrenaline” at the time. After § 87(2)(b) spit, he moved forward in a motion that suggested he was going to spit again. PO Araujopassos struck § 87(2)(b) reflexively with his nondominant hand in order to get § 87(2)(b) away from him and prevent him from spitting again. PO Araujopassos did not know if § 87(2)(b) was ill or had any communicable diseases that could be spread through saliva. There were no indicators during this situation, however, that suggested § 87(2)(b) had any illnesses. When recounting this incident from memory, PO Araujopassos stated that his hand was partially open and that the base of his palm made contact with the right side of § 87(2)(b) face. After viewing the portion of PO Arias’ BWC video noted above, PO Araujopassos stated that the video was consistent with his recalled testimony. PO Araujopassos declined to amend or add to his statement.

PO Araujopassos reported in his GO-15 associated with the PBBX-IU investigation that he “smacked” § 87(2)(b) as noted at the 7:30 minute-mark of the audio file (**Board Review 16**). He did not address his use of profanity during this interview.

As stated above, a second request for TRI reports regarding this incident is pending (Board Review 17).

Patrol Borough Bronx Investigations Unit substantiated the allegation that PO Araujopassos punched § 87(2)(b) in the face while he was handcuffed (**Board Review 02**). The comments regarding this allegation, noted on pages 8 and 9, specifically used the words “punch” and “closed fist” to describe how PO Araujopassos struck § 87(2)(b). PBBX-IU also substantiated the allegation that PO Araujopassos’ action of punching § 87(2)(b) while he was handcuffed was prohibited by NYPD Patrol Guide Procedure 221-01. The comments on page 8 of the report under the use of force allegation noted PO Araujopassos was issued Command Discipline A for the discourteous remark to § 87(2)(b).

According to NYPD Patrol Guide Procedure 200-02, officers should treat every citizen with compassion, courtesy, professionalism, and respect (**Board Review 08**).

As noted in the discussion of Allegations A-C, profane remarks made during stressful situations or while an officer is trying to get a chaotic situation under control are not misconduct (**Board Review 09**).

NYPD Patrol Guide Procedure 221-01 states that officers shall not use any level of force on handcuffed or otherwise restrained subjects unless necessary to prevent injury, escape, or to overcome active physical resistance or assault (**Board Review 10**). All uses of force must be reasonable under the circumstances.

§ 87(2)(g)

Therefore, it is recommended that **Allegation I** be closed as **Substantiated**.

When PO Araujopassos used a fist to strike § 87(2)(b) was handcuffed and not attempting to escape. § 87(2)(g)

Therefore, it is recommended that **Allegation J** be closed as **Substantiated**.

§ 87(2)(g), § 87(4-b)

Allegation (L) Untruthful Statement: On April 13, 2023, at 100 Church Street, 10th FL in Manhattan, Police Officer Joesne Araujopassos provided a false official statement to the CCRB. PO Araujopassos' body-worn camera video confirmed that PO Araujopassos pulled § 87(2)(b) leg over the door and that he struck § 87(2)(b) with a closed fist, as discussed above.

PO Araujopassos initially stated that § 87(2)(b) "dove" through the driver's window into the car such that his feet were in the air. When confronted with the video evidence of him bending § 87(2)(b) leg down over the door, PO Araujopassos amended his testimony that § 87(2)(b) did not go through the window. He stated that he only held onto § 87(2)(b) leg to keep it in place and did not put any pressure on it, as noted at the 58:40 minute-mark of the interview audio (**Board Review 05**). When describing how he struck § 87(2)(b) PO Araujopassos stated that he struck § 87(2)(b) with his

palm. When the investigation presented the video evidence showing that PO Araujopassos had used his fist to strike § 87(2)(b) PO Araujopassos confirmed that the video captured the action he described and said that he did not wish to amend or add to his statement, at the 1:01:19 minute-mark. PO Araujopassos stated that he had previously reviewed his BWC video in August 2022 prior to his interview for the Patrol Borough Bronx Investigations Unit (PBBX-IU) case.

It should be noted that in his statement to PBBX-IU, PO Araujopassos characterized the strike as a “smack,” at the 7:30 minute-mark of the interview audio (**Board Review 16**). Regardless, the PBBX-IU report deemed the action a punch and substantiated the allegation (**Board Review 02**). Pages 30 through 32 of the report note that PO Araujopassos was notified of PBBX-IU’s findings on October 9, 2022.

Officers are prohibited from intentionally making a false official statement, according to NYPD Administrative Guide 304-10 (**Board Review 18**). A false official statement is an intentional statement that a member of the service knows to be untrue, which is material to the outcome of an investigation in connection with which the statement was made. When an officer is afforded an opportunity to recollect with the benefit of credible evidence, and the member makes a statement consistent with the evidence, the officer’s prior statement could be considered misleading or inaccurate, but not a false statement.

PO Araujopassos received the findings of PBBX-IU’s investigation months before his CCRB interview and reviewed his BWC video in advance of the interview. He also reviewed his statement to PBBX-IU prior to his interview with the CCRB. § 87(2)(g)

Therefore, it is recommended that **Allegation L** be closed as **Substantiated**.

Civilian and Officer CCRB Histories:

- § 87(2)(b)
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- PO Araujopassos has been a member of service for two years, and this is the first complaint to which he has been a subject (Board Review 22).
- PO Negron has been a member of service for two years, and this is the first complaint to which he has been a subject (Board Review 22).
- PO Capellan has been a member of service for seven years and has been a subject in five additional cases and 11 allegations, none of which were substantiated (Board Review 22).

Mediation, Civil, and Criminal Histories

CCRB Case # 202203671

- This complaint was not suitable for mediation.
- According to the New York City Office of the Comptroller, there has been no Notice of Claim filed in regard to this incident as of December 5, 2022 (Board Review 23).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: Bias #1

Investigator:	 Signature	Inv. Devaney Print Title & Name	07/18/2023 Date
Squad Leader:	Carlmais Johnson Signature	IM Carlmais Johnson Print Title & Name	July 19, 2023 Date
Reviewer:	Darius Charney Signature	RPBP Director Darius Charney Print Title & Name	September 11, 2023 Date